TOWN of MERRILLVILLE

Office of Town Administration

NOTICE AND REQUEST FOR PROPOSALS TO PERFORM RETROFIT of LIGHTING In the MERRILLVILLE MUNICIPAL COMPLEX (TOWN HALL)

The Town of Merrillville, Indiana has entered into an agreement with the Office of State and Community Energy Programs (SCEP) and Energy Efficiency and Conservation Block Grant Program (EECBG) an Office within the United States Department of Energy (DOE) to meet the goals and objectives of Building Energy Efficiency: Funding Commercially available efficiency or renewable energy upgrades, provided that projects adhere to the requirements of the respective DOE (PA), are installed in or on existing buildings that do not require ground disturbance, tree removal or tree trimming, do not require structural reinforcement, are appropriately sized, and are limited to installation of energy efficient lighting.

Qualified bidders are invited to submit a bid to retrofit existing fluorescent lights and replace them with Light Emitting Diode (LED) lights as described herein.

Description of work:
The project includes the retrofit of the existing fluorescent light fixtures, with equivalent lumens from the existing lighting to light-emitting diode (LED) assets. This can involve using the existing fixtures or replacement. A list of assets and specific requirements will be available at the Merrillville Town Hall, Office Town Administration, 7820 Broadway, Merrillville, IN 46410.

The project is to be performed at the Merrillville Town Hall, 7820 Broadway Avenue, Merrillville, Indiana. The labor for installation must be clearly distinguished in the bid. Any labor engaged must comply with the Davis Bacon Act Requirements.

Contractors must be registered with the State of Indiana in good standing and licensed to do business in Merrillville, Indiana. Your company must promise to participate in the E-Verify Program for any new hires and submit an affidavit confirming that you do not knowingly employ any unauthorized workers and provide certification of not engaging in Iran's energy sector. Contractor will comply with IC 5-22-16 et seq. and IC 5-22-16.5 et seq.

Response and performance metrics:
The qualified bidder or bidders will provide a bid that includes the discrete cost of equipment and the discrete cost of labor to retrofit the existing fluorescent light fixtures, with equivalent lumens from light-emitting diode (LED) assets. This can involve using the existing fixtures or replacement. The bid should be stated as a gross cost. Bidders are highly encouraged to participate in the NIPSCO

Energy incentive program. The successful bid will be awarded to the qualified bidder who provides the most responsive and responsible bid with the lowest cost to the municipality.

Contact the Town Manager in the Office of Town Administration for details concerning the census of fixtures in the Town Hall and for the additional specifications.

Bidder must be in compliance with the licensing provisions of the Town of Merrillville.

If the bidder submits a bid of more than two hundred thousand dollars ($200,000) the bidder shall then provide a faithful performance bond or a certified check payable to the Town of Merrillville in the amount of twenty thousand dollars ($20,000). In all other cases, no faithful performance bonds or certified check shall be required.

The selected bidder will be expected to perform the retrofit work while municipal workers are at work and serving.

Bidders shall submit a non-collusion affidavit, as required pursuant to IC 36-1-12-4 et seq. (This is found on State Form 96)

Pre-Bid Meeting
Bidders are highly encouraged to participate in a pre-bid meeting for interested bidders to be held on ***Friday, October 10, 2025, at 10:00 a.m.*** at the Merrillville Town Hall, 7820 Broadway, Merrillville, Indiana, 46410. Potential bidders may conduct a walk around and ask questions.

Please send your proposal to the Town Manager, 7820 Broadway, Merrillville, Indiana 46410. (mgriffin@merrillville.in.gov.) More than one contractor may be selected. Selections will be based upon the lowest, most responsive and responsible bidder, offering the overall lowest costs, and capacity to perform the work as described. Selected bidder or bidders will be required to comply with the Town's business or contractor license. The Town reserves the right to reject all proposals for any reason. The Town reserves the right to waive irregularities in the proposals that do not affect the substantive elements of the proposal or impair the comparisons that inform the selection.

All bids must be received by Friday, October 17, 2025, at 2:30 p.m. Central Standard Time. The bids will be opened and read aloud at this time in the Plenary meeting room of the Merrillville Town Hall. The bids then will be reviewed and presented to the Town Council for its consideration and action.

If you have any questions, please contact Michael W. Griffin, Merrillville Town Manager, for more information. (219) 769-5711 Ext. 302

SPECIFICATIONS and AUDIT of EXISTING LIGHT FIXTURES IN MERRILLVILLE TOWN HALL for the LED RETROFIT

Count	Description
2	1x2 Two Lamp T12 Strip Fixtures
2	1x2 Two Lamp T12 Wall mount Fixtures
25	1 x 4 Two Lamp T12 Strip Fixtures
3	1x4 Two Lamp T12 Wall Mount Fixtures
4	2 x 4 Two Lamp T12 Surface Mount Fixtures
137	2 x 4 Two Lamp T12 Troffer Fixtures
8	2 x 4 Two Lamp T12 Strip Fixtures
54	2 x 4 Four Lamp T12 Troffer Fixtures
23	2 x 2 Two U-Lamp T12 Troffer Fixtures
25	1 x 8 Two Lamp T12 Strip Fixtures
54	2 x 4 Four Lamp T12 Troffer Fixtures
23	2x2 Two U Lamp T12 Trofer Fixtures
25	1 x 8 Two Lamp T12 Strip Fixtures
54	2 x4 Two Lamp T8 Troffer Fixtures
14	2 x4 Four Lamp T8 troffer Fixtures

1. Bidder is responsible to verify the counts of the assets shown above.
2. Bidders are highly encouraged to participate in NIPSCO's incentive program.
3. Bidders should prepare the bid with assets that are DLC listed.
4. Bidders should offer a warranty of five or more years on the equipment.
5. All bids shall be bid as a gross amount.
6. Color temperature shall be 5,000 Kelvin.
7. Bidder shall match as much as possible the existing lumens.
8. Bidder will be required to report the estimated savings from the retrofit in a year.

Prebid meeting at Merrillville Town Hall, Friday October 10, 2025, at 10:00 a.m.

Addendum:

1. If retrofitting existing fluorescent fixtures to LED, vs. fixture replacement, new LED lamps shall be of Type B, or Type AB for ballast bypass installation. Fluorescent ballasts shall be removed from existing fixtures and disposed of in accordance with applicable standards where hazardous materials are an issue.
2. Contractor shall provide proof of recycling of all mercury containing lamps and ballasts containing PCB's by an authorized recycler. All costs for disposal shall be included in the final bid.

CLAUSE (ADDENDUM) and AFFIDAVIT ADDENDUM TO BE ADDED TO CONTRACT FOR SERVICES TO BE PROVIDED TO THE TOWN OF MERRILLVILLE
(as required by I.C. 22-5-1.7 -11, effective July 1, 2011)

Verification of Work Eligibility Status

1. _____ of _____, (hereinafter called "Contractor") understands and agrees that:

(A) It is required to enroll in and verify the work eligibility status of all employees hired after the date of this contract though the E-Verify program.

(B) This requirement shall be waived if the E-Verify program ceases to exist. For the purposes of this paragraph, the *"E-Verify program"* means the electronic verification of work authorization program of the Illegal Immigration Reform and Immigration Responsibility Act of 1996 (P.L. 104-208), Division C, Title IV, s. 403(a), as amended, operated by the United States Department of Homeland Security or a successor work authorization program designated by the United States Department of Homeland Security or other federal agency authorized to verify the work authorization status of newly hired employees under the Immigration Reform and control Act of 1986 (P.L. 99-603); and

2. An authorized representative of the Contractor has signed the attached affidavit concerning the employment of unauthorized aliens.

This contract clause is developed pursuant to SEA 590 codified as IC 22-5-1.7-11 (a)(1).

_____
Authorized Signatory

Title:

Date: _____

AFFIDAVIT OF SERVICE PROVIDER or CONTRACTOR
WITH THE TOWN OF MERRILLVILLE, LAKE COUNTY, INDIANA
REGARDING HIRE OF UNAUTHORIZED ALIENS

State of Indiana)
) SS:
County of Lake)

A F F I D A V I T

I, the undersigned, authorized representative, authorized officer or agent of _____ hereinafter called "contractor", which has a contract for services or goods with the Town of MERRILLVILLE, Lake County, Indiana, having given solemn affirmation, hereby depose(s) and say(s), that the contractor does not knowingly employ an unauthorized alien.

FURTHERETH AFFIANT SAYETH NOT.

Signed: _____, Affiant.

Certificate of Notary

On this ____ day of _____, 2025, before me personally came and appeared **the affiant herein named,** known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that she executed same for the purpose therein contained.

In Witness Whereof, I hereunto set my hand and official seal.

My commission expires: _____.

County of Residence: _____.

(seal)

_____
NOTARY

Affidavit pursuant to IC 22-5-1.7-11

AUDIT of EXISTING LIGHT FIXTURES IN TOWN HALL

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CONTRACTOR'S BID FOR PUBLIC WORK - FORM 96

State Form 52414 (R2 / 2-13) / Form 96 (Revised 2013)
Prescribed by State Board of Accounts

PART I
(To be completed for all bids. Please type or print)

Date *(month, day, year)*:_____

1. Governmental Unit (Owner):_____
2. County :_____
3. Bidder (Firm):_____

   Address:_____

   City/State/ZIPcode:_____
4. Telephone Number:_____
5. Agent of Bidder *(if applicable)*:_____

Pursuant to notices given, the undersigned offers to furnish labor and/or material necessary to complete the public works project of _____ (Governmental Unit) in accordance with plans and specifications prepared by _____ _____ and dated _____ for the sum of _____ $_____

The undersigned further agrees to furnish a bond or certified check with this bid for an amount specified in the notice of the letting. If alternative bids apply, the undersigned submits a proposal for each in accordance with the notice. Any addendums attached will be specifically referenced at the applicable page.

If additional units of material included in the contract are needed, the cost of units must be the same as that shown in the original contract if accepted by the governmental unit. If the bid is to be awarded on a unit basis, the itemization of the units shall be shown on a separate attachment.

The contractor and his subcontractors, if any, shall not discriminate against or intimidate any employee, or applicant for employment, to be employed in the performance of this contract, with respect to any matter directly or indirectly related to employment because of race, religion, color, sex, national origin or ancestry. Breach of this covenant may be regarded as a material breach of the contract.

CERTIFICATION OF USE OF UNITED STATES STEEL PRODUCTS
(If applicable)

I, the undersigned bidder or agent as a contractor on a public works project, understand my statutory obligation to use steel products made in the United States (I.C. 5-16-8-2). I hereby certify that I and all subcontractors employed by me for this project will use U.S. steel products on this project if awarded. I understand that violations hereunder may result in forfeiture of contractual payments.

ACCEPTANCE

The above bid is accepted this _____ day of _____, _____, subject to the following conditions: _____

_____

Contracting Authority Members:

_____ _____

_____ _____

_____ _____

PART II

(For projects of $150,000 or more – IC 36-1-12-4)

Governmental Unit: _____

Bidder (Firm) _____

Date *(month, day, year):* _____

These statements to be submitted under oath by each bidder with and as a part of his bid. Attach additional pages for each section as needed.

SECTION I EXPERIENCE QUESTIONNAIRE

1. What public works projects has your organization completed for the period of one (1) year prior to the date of the current bid?

Contract Amount	Class of Work	Completion Date	Name and Address of Owner

2. What public works projects are now in process of construction by your organization?

Contract Amount	Class of Work	Expected Completion Date	Name and Address of Owner

3. Have you ever failed to complete any work awarded to you? _____ If so, where and why?

_____

_____

_____

4. List references from private firms for which you have performed work.

_____

_____

_____

_____

_____

SECTION II PLAN AND EQUIPMENT QUESTIONNAIRE

1. Explain your plan or layout for performing proposed work. *(Examples could include a narrative of when you could begin work, complete the project, number of workers, etc. and any other information which you believe would enable the governmental unit to consider your bid.)*

_____

_____

_____

_____

_____

2. Please list the names and addresses of all subcontractors *(i.e. persons or firms outside your own firm who have performed part of the work)* that you have used on public works projects during the past five (5) years along with a brief description of the work done by each subcontractor.

_____

_____

_____

_____

_____

3. If you intend to sublet any portion of the work, state the name and address of each subcontractor, equipment to be used by the subcontractor, and whether you will require a bond. However, if you are unable to currently provide a listing, please understand a listing must be provided prior to contract approval. Until the completion of the proposed project, you are under a continuing obligation to immediately notify the governmental unit in the event that you subsequently determine that you will use a subcontractor on the proposed project.

_____

_____

_____

_____

_____

4. What equipment do you have available to use for the proposed project? Any equipment to be used by subcontractors may also be required to be listed by the governmental unit.

_____

_____

_____

_____

_____

5. Have you entered into contracts or received offers for all materials which substantiate the prices used in preparing your proposal? If not, please explain the rationale used which would corroborate the prices listed.

_____

_____

_____

_____

_____

SECTION III CONTRACTOR'S FINANCIAL STATEMENT

Attachment of bidder's financial statement is mandatory. Any bid submitted without said financial statement as required by statute shall thereby be rendered invalid. The financial statement provided hereunder to the governing body awarding the contract must be specific enough in detail so that said governing body can make a proper determination of the bidder's capability for completing the project if awarded.

SECTION IV CONTRACTOR'S NON – COLLUSION AFFIDAVIT

The undersigned bidder or agent, being duly sworn on oath, says that he has not, nor has any other member, representative, or agent of the firm, company, corporation or partnership represented by him, entered into any combination, collusion or agreement with any person relative to the price to be bid by anyone at such letting nor to prevent any person from bidding nor to include anyone to refrain from bidding, and that this bid is made without reference to any other bid and without any agreement, understanding or combination with any other person in reference to such bidding.

He further says that no person or persons, firms, or corporation has, have or will receive directly or indirectly, any rebate, fee, gift, commission or thing of value on account of such sale.

SECTION V OATH AND AFFIRMATION

I HEREBY AFFIRM UNDER THE PENALTIES FOR PERJURY THAT THE FACTS AND INFORMATION CONTAINED IN THE FOREGOING BID FOR PUBLIC WORKS ARE TRUE AND CORRECT.

Dated at _____ this _____ day of _____, _____

_____
(Name of Organization)

By_____

_____
(Title of Person Signing)

ACKNOWLEDGEMENT

STATE OF _____)
) ss
COUNTY OF_____)

Before me, a Notary Public, personally appeared the above-named _____ and swore that the statements contained in the foregoing document are true and correct.

Subscribed and sworn to before me this _____ day of _____, _____.

_____
Notary Public

My Commission Expires:_____

County of Residence:_____

Part of State Form 52414 (R2 / 2-13) / Form 96 (Revised 2013)

BID OF

_____
(Contractor)

_____
(Address)

_____

FOR

PUBLIC WORKS PROJECTS

OF

_____

_____

_____

Filed _____, _____

Action taken _____

_____